Republic of the Philippines
City of Davao
Office of the Sangguniang Panlungsod
20th City Council
Committee Legislative Hearing Draft
Series of 2026

PRESENT:

Vice Mayor J. Melchor B. Quitain Jr.	- Presiding Officer
Councilor Marissa S. Abella	Councilor Louie John J. Bonguyan
Councilor Nilo M. Abellera Jr.	Councilor Pilar C. Braga
Councilor Luna Maria Dominique S. Acosta	Councilor Jonard C. Dayap
Councilor Bernard E. Al-ag	Councilor Edgar P. Ibuyan Jr.
Councilor Wilberto E. Al-ag	Councilor Richlyn N. Justol-Baguilod
Councilor Al Ryan S. Alejandre	Councilor Diosdado Angelo Junior R. Mahipus
Councilor Dante L. Apostol Sr.	Councilor Bonz Andre A. Militar
Councilor Conrado C. Baluran	Councilor Temujin B. Ocampo
Councilor Jessica M. Bonguyan	Councilor Myrna G. L'Dalodo-Ortiz

ABSENT:

Councilor Alberto T. Ungab	- On Official Business
Councilor Lorenzo Benjamin D. Villafuerte	- On Leave

PROPOSED ORDINANCE NO. 2026-01, SERIES OF 2026

Series of 2026

AN ORDINANCE REGULATING THE USE OF AGRICULTURAL CHEMICALS, ESTABLISHING BUFFER ZONES AROUND COMMERCIAL PLANTATIONS, PROHIBITING AERIAL SPRAYING, AND PROVIDING PENALTIES FOR VIOLATIONS THEREOF IN THE CITY OF DAVAO

Be it ordained by the Sangguniang Panlungsod of Davao City, in session assembled, that:

SECTION 1. TITLE - This Ordinance shall be known and cited as the 'Agricultural Chemical Regulation and Buffer Zone Ordinance of Davao City'.

SECTION 2. DECLARATION OF POLICY - Pursuant to Section 16 of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, the City Government of Davao shall ensure and support the promotion of health and safety, enhance the right of the people to a balanced ecology, and preserve the comfort and convenience of its inhabitants.

It is hereby declared the policy of the City of Davao to regulate the application of agricultural chemicals in commercial crop plantations and farmlands in order to protect residential communities, schools, and water sources from the hazards of chemical drift, while supporting sustainable agricultural productivity across the city.

SECTION 3. DEFINITION OF TERMS - As used in this Ordinance, the following terms shall be construed to mean:

(a) Agricultural Chemical - refers to any fertilizer, pesticide, fungicide, herbicide, insecticide, or other chemical substance utilized in agricultural production and crop protection;

(b) Aerial Spraying - refers to the application, spraying, or dispersion of agricultural chemicals from an airplane, helicopter, drone, or any airborne aircraft;

(c) Commercial Plantation - refers to any agricultural land or farm holding dedicated to the commercial cultivation of export crops such as bananas, pineapples, or oil palm;

(d) Buffer Zone - refers to a physical setback area of land established between a commercial plantation boundary and adjoining residential areas, public roads, or bodies of water;

(e) Ground Spraying - refers to the manual or mechanized application of agricultural chemicals using tractor-mounted boom sprayers, power sprayers, or knapsack sprayers operated from the ground.

SECTION 4. SCOPE AND COVERAGE - This Ordinance shall apply to all commercial plantations, agricultural corporate farms, agricultural landowners, farm operators, and spraying contractors operating within the territorial jurisdiction of the City of Davao.

SECTION 5. MANDATORY BUFFER ZONE - All owners, operators, and managers of commercial agricultural plantations within Davao City shall establish and maintain a mandatory thirty (30) meter buffer zone along the perimeter boundary of their plantations adjacent to residential zones, schools, public roads, and natural water bodies.

The buffer zone must be planted with appropriate trees, bamboo, and tall vegetative barriers capable of minimizing and intercepting chemical drift from field operations. Plantations shall be given a period of six (6) months from the effectivity of this Ordinance to fully establish compliant buffer zones.

SECTION 6. BAN ON AERIAL SPRAYING - Aerial spraying shall be strictly prohibited in all agricultural activities and commercial crop plantations within the territorial jurisdiction of Davao City after a three (3) month transition period from the effectivity of this Ordinance.

All agricultural entities and plantation operators currently employing aerial spraying shall shift to ground-based application methods. Any person or entity found applying or causing the application of agricultural chemicals through aerial spraying shall be subject to the penalties provided in this Ordinance.

SECTION 7. REGULATION OF GROUND SPRAYING OPERATIONS - All ground-based chemical spraying operations within commercial plantations shall be subject to the following regulations:

(a) Spraying operations shall not be conducted during periods of heavy wind or adverse weather conditions that cause excessive drift toward neighboring communities;

(b) Plantation operators shall provide all farm sprayers and agricultural workers with appropriate personal protective equipment (PPE), including protective clothing, gloves, and respirators;

(c) Spraying personnel must undergo proper safety training in chemical handling and application approved by the City Agriculturist's Office;

(d) Chemical storage and mixing areas must be situated away from residential settlements and drainage channels.

SECTION 8. IMPLEMENTING OFFICES AND MONITORING - The City Agriculturist's Office (CAO), in coordination with the City Environment and Natural Resources Office (City ENRO) and the City Health Office (CHO), shall be the primary implementing agencies of this Ordinance.

The implementing offices shall conduct periodic inspections of commercial plantations, verify the establishment of required buffer zones, investigate community complaints regarding chemical drift, and submit regular compliance reports to the City Mayor and the Sangguniang Panlungsod.

SECTION 9. NOTICE OF VIOLATION AND REMEDIATION - Upon discovery of any violation of Section 5 or Section 7 of this Ordinance, the City Agriculturist's Office shall immediately issue a written Notice of Violation directing the owner or operator of the plantation to institute corrective measures within fifteen (15) working days.

Failure to rectify the violation within the prescribed period shall result in the filing of appropriate administrative and judicial charges against the non-compliant entity.

SECTION 10. PENALTIES - Any person, plantation operator, manager, or corporate officer who violates the provisions of this Ordinance shall, upon conviction, be penalized as follows:

(a) First Offense: A fine of One Thousand Pesos (Php 1,000.00);

(b) Second Offense: A fine of Three Thousand Pesos (Php 3,000.00);

(c) Third and Subsequent Offenses: A fine of Five Thousand Pesos (Php 5,000.00) or imprisonment for a period of six (6) months, or both such fine and imprisonment at the discretion of the court.

In addition to the foregoing penalties, the business permit of the commercial plantation may be suspended or revoked upon recommendation of the City Legal Officer.

SECTION 11. SEPARABILITY CLAUSE - If, for any reason, any section or provision of this Ordinance is declared unconstitutional or invalid, other sections or provisions hereof not affected thereby shall continue to be in full force and effect.

SECTION 12. EFFECTIVITY - This Ordinance shall take effect fifteen (15) days after its complete publication in a newspaper of general circulation in the City of Davao.

ENACTED on Committee Review, by the Sangguniang Panlungsod of Davao City.

CERTIFIED CORRECT:

CHARITO N. SANTOS
Secretary to the Sangguniang Panlungsod
(City Government Department Head II)

ATTESTED:

J. MELCHOR B. QUITAIN JR.
Vice Mayor
Presiding Officer

APPROVED: _____, 2026

SEBASTIAN Z. DUTERTE
City Mayor

ATTESTED:

ATTY. FRANCIS MARK H. LAYOG
Acting City Administrator